

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #15	CCRB Case #: 201702102	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/13/2017 5:40 PM	Location of Incident: Jamaica Avenue and Bradford Street	18 Mo. SOL 9/13/2018	Precinct: 75		
Date/Time CV Reported Mon, 03/13/2017 8:47 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/20/2017 12:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jhonny Milfort	935	954738	075 PCT
2. POM Jean Prinston	08067	954245	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jhonny Milfort	Abuse: Police Officer Jhonny Milfort threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Jean Prinston	Abuse: Police Officer Jean Prinston frisked § 87(2)(b)	B . Substantiated
C . POM Jhonny Milfort	Abuse: Police Officer Jhonny Milfort frisked § 87(2)(b)	C . Substantiated
D . POM Jean Prinston	Abuse: Police Officer Jean Prinston searched § 87(2)(b)	D . Unsubstantiated

Case Summary

On March 13, 2017, § 87(2)(b) filed this complaint with IAB via the telephone, generating log § 87(2)(b). The case was received by the CCRB on March 20, 2017.

On March 13, 2017, at 5:40 p.m., § 87(2)(b) was stopped by PO Jhonny Milfort and Jean Prinston of the 75th Precinct for jaywalking at the intersection of Bradford Street and Jamaica Avenue in Brooklyn. § 87(2)(b) was asked for his identification multiple times, but he refused to produce it and allegedly requested that a sergeant be called to the location. PO Milfort allegedly replied, “If you want me to call the sergeant, you’ll be arrested then” (**Allegation A**). Eventually, § 87(2)(b) produced his identification, and both officers frisked him and his bag (**Allegations B and C**). PO Prinston also allegedly searched § 87(2)(b) (**Allegation D**). PO Milfort then issued § 87(2)(b) a criminal court summons for § 87(2)(b) and § 87(2)(b) was released.

There is no video recording of the incident.

Mediation, Civil and Criminal Histories

- Mediation was not offered to § 87(2)(b) § 87(2)(b)
- On May 10, 2017, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt [BR 07].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is a third CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- PO Milfort has been a member of the service for three years and has two previous CCRB complaints filed against him containing three allegations, none of which were substantiated § 87(2)(g).
- PO Prinston has been a member of the service for four years and has two previous CCRB complaints filed against him containing three allegations, none of which were substantiated § 87(2)(g).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) made the threat of arrest allegation against the officer who issued him a summons and identified him by name, PO Milfort. § 87(2)(g)

- Although § 87(2)(b) alleged that PO Milfort's partner, identified by the investigation as PO Princeton, was the one who frisked and searched him, PO Milfort also admitted to frisking § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Jhonny Milfort threatened to arrest

§ 87(2)(b)

During his in-person interview at the CCRB, § 87(2)(b) stated he refused to provide his identification to the officers as they did not explain to him the reason for the stop [BR 03]. § 87(2)(b) requested for a sergeant to be called to the location, and PO Milfort allegedly replied, "If you want me to call the sergeant, you'll be arrested then." § 87(2)(b) asked what he was going to be arrested for, but PO Milfort did not explain. Eventually, it was explained to § 87(2)(b) that he was stopped for jaywalking, which he denied doing, and he produced his identification after the officers asked for it at least three times. § 87(2)(g)

§ 87(2)(b) in his statement to IAB, he alleged that one of the officers told he him he would be arrested if he did not produce his identification [BR 02].

When interviewed at the CCRB, PO Milfort confirmed that he and his partner stopped § 87(2)(b) since both of them observed him cross Jamaica Avenue not in a designated area [BR 04]. PO Milfort corroborated § 87(2)(b)'s account that he repeatedly refused to produce his identification after he was asked for it approximately five times. PO Milfort testified that he explained to § 87(2)(b) in the beginning that he was stopped for jaywalking, but § 87(2)(b) insisted that jaywalking is not a crime. Eventually, PO Milfort informed § 87(2)(b) if he continued to refuse to provide his identification, he would take § 87(2)(b) to the 75th Precinct stationhouse to establish his identity. PO Milfort denied threatening to arrest § 87(2)(b) or use the word "arrest" in any context. Additionally, § 87(2)(b) never requested for a supervisor.

§ 87(2)(g)

§ 87(2)(b) PO Princeton did not hear PO Milfort use the word arrest in any context toward § 87(2)(b) or threaten him with arrest. Although PO Princeton testified he was the one who told § 87(2)(b) he could have been taken to the stationhouse, he noted that PO Milfort might have said that as well. PO Princeton also confirmed that § 87(2)(b) never requested for the sergeant.

According to section 404 c(2) of New York City Department of Transportation Traffic Rules, no pedestrian should cross any roadway at an intersection except for a crosswalk [BR 10]. As per New York State Criminal Procedure Law 140.50, an officer may stop and/or arrest an individual who has committed a crime [BR 11]. Additionally, as per NYPD Patrol Guide Procedure 209-09, when issuing an individual a summons, an officer must establish the identity of that individual [BR 12]. In case an officer has doubts in regards to the identity of the violation, he/she should remove the person to the command to investigate it.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) In the light of the above, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: Police Officer Jean Princeton frisked § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Jhonny Milfort frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Jean Princeton searched § 87(2)(b)

§ 87(2)(b) alleged that after he produced his identification, PO Milfort put a radio transmission, and PO Princeton started patting his plastic bag that he had in his hand [BR 03]. PO Princeton then lifted § 87(2)(b)'s coat and shirt and looked at his bare back. Next, PO Princeton patted § 87(2)(b)'s front pants pockets and his groin area. § 87(2)(b) became upset that PO Princeton patted him down, especially his groin area, jumped away from him and started cursing at the officer. § 87(2)(b) noted that PO Princeton did not explain why he frisked and searched him nor did he ask for permission to do so. § 87(2)(b) explained that on the day of the incident he was wearing average fitting leather pants, a large fur coat that cut near the waist area, had a backpack and a plastic bag in his hand. § 87(2)(b) § 87(2)(g)

§ 87(2)(b) did not make a search allegation in his statement to IAB [BR 01, 02].

PO Princeton testified that as § 87(2)(b) was stopped, he started cursing at the officers and became uncooperative by refusing to provide his identification [BR 05]. PO Princeton called for an additional unit as he feared for his and his partner's safety and believed the situation might escalate since § 87(2)(b) is also a large individual. When § 87(2)(b) heard PO Princeton put the radio transmission over, he produced his identification, and one of the officers asked him if he had anything on him that could hurt them. § 87(2)(b) replied he did not know, and one of the officers asked § 87(2)(b) if he minded if the officer checked him. § 87(2)(b) replied, "No problem," and PO Princeton patted his front pants pockets, waistband, and groin area, but did not find anything. § 87(2)(b) was not objecting to the pat down nor was he upset during it. PO Princeton also patted § 87(2)(b)'s backpack, but denied lifting § 87(2)(b)'s coat or entering any pockets on him. PO Princeton did not recall if PO Milfort patted § 87(2)(b) as well. PO Princeton explained he frisked § 87(2)(b) because of the big jacket he was wearing and because he was putting his hands up, and noted there was no other reason for it. When asked if there was any indication § 87(2)(b) could have been concealing a weapon on his person, PO Princeton replied he might have since he was wearing a big jacket. § 87(2)(b) did not put his hands inside his pockets nor were there any bulges on him. § 87(2)(b) did not make any movements towards his pockets or waist band either. PO Princeton told the investigator that there were no additional reasons § 87(2)(b) was patted down, but noted he was not stopped and patted down because of his clothes. That was done after § 87(2)(b) became loud, started cursing and raising hands up in the air.

PO Milfort § 87(2)(g)

§ 87(2)(b) noted he patted § 87(2)(b)'s waistband, previously asking for his permission, which he granted by saying, "Yes, I don't care. I don't have anything on me. You can do whatever you want" [BR 04]. PO Milfort explained he did so because he feared for his safety since § 87(2)(b) was loud, moving his hands and was upset. PO Milfort denied lifting § 87(2)(b)'s coat or entering any pockets on him, but noted he also patted and squeezed § 87(2)(b)'s bags. PO Milfort did not recall if his partner frisked § 87(2)(b) but added that neither of the officers searched him. While § 87(2)(b) was being frisked, he did not object and just kept saying he did not have anything on him. When asked if there was any indication § 87(2)(b) could have been concealing a weapon on him, PO Milfort replied he did not know since § 87(2)(b) was wearing baggy clothes. Additionally, PO Milfort stated he did not recall if § 87(2)(b) had any bulges on him. When asked if there was any other indication § 87(2)(b) could have been armed, PO Milfort replied no. PO Milfort added that § 87(2)(b) kept moving his hands around and putting them inside his pockets. PO Milfort instructed § 87(2)(b) to take his hands out of his pockets since he was making the officer nervous. PO Milfort stated he did not discuss with his partner his concerns for their safety. PO Milfort did not recall if the frisk happened before or after § 87(2)(b) produced his identification.

According to NYPD Patrol Guide Procedure 212-11, an officer may frisk an individual if he/she develops a reasonable suspicion that a person is armed and dangerous [BR 13]. This suspicion may arise from the officer's observations or the circumstances of the encounter, such as reasonable suspicion the suspect has committed, is committing or is about to commit a violent crime, observation of something on the person that the officer reasonably suspects is a weapon, a statement by the suspect that he is armed, and prior information that the suspect may be carrying a weapon. An officer may not frisk a suspect's bag unless he/she has reasonable suspicion that the person is armed and dangerous or the bag could contain a weapon. An officer is not justified in frisking an individual only because he/she looks suspicious absent any other articulable facts that suggest the person is armed and dangerous. People v. Carney, 58 N.Y.2d 51 [BR 14]. In People v. Valo, 92 A.D. 2d 1004, an officer was justified in frisking an individual following a legal stop because he observed the defendant pocket a shiny metallic object which might easily have been a knife or other weapon [BR 15]. In People v. Curry, 81 A.D. 3d, 1315, an officer was justified in frisking an individual who was making suspicious movements towards his waist band after he was legally stopped for a suspected gun possession; and in People v. DeBour, 40 N.Y. 2d 210, court justified the frisk following rightful questioning that was based on the observation of a waistband bulge, which was deemed to be a tell-tale sign of a weapon [BR 16, 17].

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegations B** and **C** are closed as **substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation D** is closed as **unsubstantiated**.

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date